

25NNCV09045 25NNCV09045

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE; FORM INTERROGATORIES, SET ONE; REQUEST FOR PRODUCTION, SET ONE AND DEEM REQUESTS FOR ADMISSION, SET ONE; AND GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On December 18, 2025, Plaintiff Katherine Cheng ("Plaintiff") filed this action against Defendants Jauregui & Culver, Inc. and Matthew Joseph Jauregui ("Defendants") arising out of a motor vehicle collision that allegedly occurred on June 21, 2024. Plaintiff alleges Defendants' negligence caused her to suffer personal injuries.

On June 24, 2026, Plaintiff filed four motions to compel further responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admission, Set One; and Requests for Production of Documents, Set One. On July 14, 2026, Defendants filed an omnibus opposition to all four motions. Reply was filed on July 20, 2026.

Meet and confer

Motions to compel further responses must always be accompanied by a meet-and confer-declaration (per Code Civ. Proc., § 2016.040) demonstrating a "reasonable and good faith attempt an informal resolution of each issue presented by the motion." (Id., §§ 2030.300(b), 2031.310(b)(2), 2033.290(b).)

Plaintiff contends she made reasonable meet and confer efforts before filing the instant motions. Plaintiff granted Defendant multiple extensions to respond to the subject discovery through May 29, 2026, continued corresponding regarding the outstanding responses, and attempted to resolve the dispute informally, including by requesting an Informal Discovery Conference. (Gkogka Decl., ¶¶ 3-11.)

Defendant contends Plaintiff failed to engage in a reasonable and good-faith meet and confer before filing the instant motions. (Opposition, pp. 2-6.)

The Court finds Plaintiff satisfied the meet and confer requirement. The record reflects Plaintiff made reasonable efforts to resolve the discovery dispute before seeking judicial intervention.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton, supra*, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general.

III. ANALYSIS

At the July 21, 2026, hearing on Plaintiff's motions to compel further responses to Form Interrogatories, Special Interrogatories, Requests for Production, and Requests for Admission directed to Defendant Jauregui & Culver, Inc., the parties advised the Court that Defendants had served the requested discovery the week prior. Thus, Plaintiff's motions to compel are DENIED AS MOOT.

Plaintiff nevertheless requests monetary sanctions. Code of Civil Procedure sections 2030.300, subdivision (d), 2031.310, subdivision (h), and 2033.290, subdivision (d), require the Court to impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds substantial justification or that other circumstances make the imposition of sanctions unjust.

Although the motions are now moot because Defendant ultimately served the requested discovery, Plaintiff was required to prepare and file the motions after Defendant failed to timely serve code-compliant responses. The Court has already awarded attorney's fees in connection with the substantially identical motions directed to Defendant Jauregui & Culver, Inc. Under these circumstances, the Court finds it appropriate to award Plaintiff only the filing fees incurred in bringing the instant motions.

Thus, the Court awards monetary sanctions in the amount of \$240.00, representing four filing fees of \$60.00 each, payable by Defendant Matthew Joseph Jauregui and defense counsel, jointly and severally, within 30 days of notice of this order.

VI. CONCLUSION AND ORDER

The Court DENIES Plaintiff's motions to compel further SPROGS, FROGS, RFP, RFA as MOOT, and GRANTS request for monetary sanctions in the amount of \$240 to be paid jointly and severally by Defendant and Defendant's counsel within 30 days of this order.

Plaintiff is to give notice.

Dated: July 27, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT